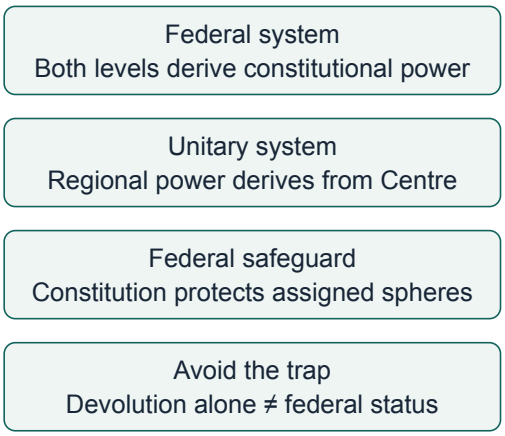
Federal System

1. Federal versus unitary: basis of authority

- **Federal:** Constitution divides powers between national and regional governments; each has constitutionally protected authority in its sphere.
- **Unitary:** regional authority is ultimately derived from national government; decentralisation/devolution can be extensive without making the system federal.
- **Foedus:** Latin for treaty/agreement; explains the term, not a requirement that every modern federation originated in a treaty.
- Federal examples: USA, Switzerland, Australia, Canada, Russia, Brazil, Argentina. Unitary examples in chapter: Britain, France, Japan, China, Italy, Norway, Sweden; some have substantial devolved/regional autonomy.
- Classical federal features: dual government, written/supreme Constitution, constitutional division, protected amendment process, independent judiciary, regional representation in a second chamber. These are a comparative model, **not an inflexible checklist** for every country.
- Unitary systems may also have written/supreme/rigid Constitutions, independent courts and bicameral legislatures. **Bicameral ≠ necessarily federal; written ≠ necessarily federal.**



The source and protection of regional authority distinguish the two models.

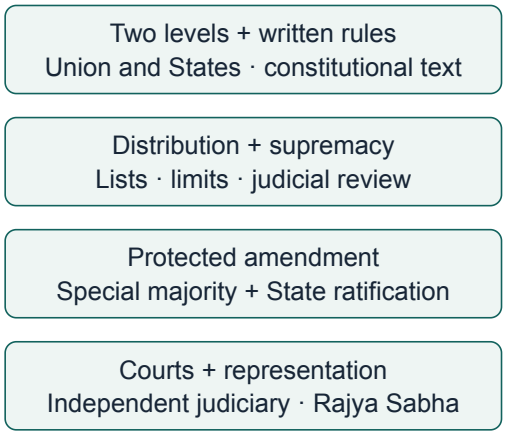
2. Formation and India's choice

- **Integration / coming together:** previously separate units join; USA is the conventional example. **Holding together:** a larger polity distributes constitutional authority; chapter uses Canada to contrast a strong-centre model.
- Treat this as a broad typology: **Canadian Confederation (1867)** united colonies and reorganised authority, not simply the breakup of one pre-existing unitary country.
- USA: Constitution framed **1787**, new federal government began **1789**, after Revolution **1775–83**; originally 13 States, now 50. Canada: originally four provinces, now ten **plus three territories**; provinces and territories are distinct.
- India chose federalism for **large territory and socio-cultural diversity**: efficient government plus unity with regional autonomy.

- **Article 1: Union of States. Ambedkar:** Union not formed by a compact of sovereign States; no State right to secede. Union is indestructible.
- Canadian influence: strong Centre, centralising division and Union terminology. India's design remains distinctive; it is not a replica or a historically literal “disintegration” of independent States.

3. Seven federal features of India

- **Dual polity:** Union handles defence, foreign affairs, currency and communications; States handle public order, agriculture, health and local government, subject to constitutional entries/exceptions.
- **Written Constitution:** structures and limits both governments. Original **395 Articles, 22 Parts, 8 Schedules**; now **25 operative Parts, 12 Schedules**. Article totals depend on counting inserted/omitted provisions; the chapter's approximate 470 is not the highest Article number.
- **Division of powers—Seventh Schedule:** Union, State, Concurrent Lists. Original entry totals **97/66/47**; chapter gives **98/59/52** after changes. Entry numbering retains gaps and insertions—do not equate the last serial number with active-entry count.
- **Constitutional supremacy:** both levels' laws/actions are reviewable for constitutional conformity; Union supremacy in specified situations does not mean Parliament is constitutionally unlimited.
- **Federal amendment safeguards—368:** specified federal changes need each House's special majority **plus at least half the States' ratification**. No general requirement of every State's approval.
- **Independent judiciary:** SC safeguards Constitution and adjudicates qualifying federal disputes; security of tenure and service safeguards support independence.
- **Bicameral Parliament:** Lok Sabha represents people; Rajya Sabha represents States and specified UTs, participates in federal amendment and exercises important federal powers. It is not subordinate in every matter.



Seven federal features grouped into four recall blocks.

4. Legislative balance: important qualifications

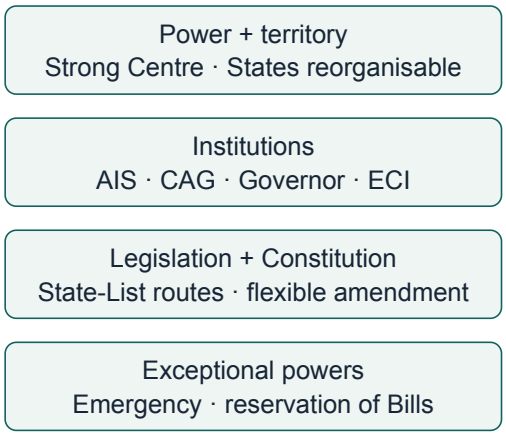
- **Residuary legislative power—248/Union List 97:** Parliament, subject to GST's special framework. USA generally reserves undelegated powers to States/people under its Tenth Amendment.
- **Concurrent conflict—254:** Union law ordinarily prevails; qualifying State law with **presidential assent** may prevail in that State, but Parliament can subsequently override it.

- **GST—246A:** concurrent special power of Union/States; Parliament exclusively legislates on inter-State supplies. Do not squeeze GST into an unchanged three-list rule.
- **249:** Rajya Sabha **two-thirds present/voting**, national-interest resolution enables parliamentary State-List legislation without Emergency. Constitutional duration and continuation rules apply.
- Other State-List routes: **250 Emergency; 252 consenting States; 253 treaty implementation**. Constitutional authorisation, not a blanket Union takeover.

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5. Fourteen centralising features

- **1. Strong Centre:** important Union subjects, residuary power and specified precedence over State laws; numerical list size alone does not measure power.
- **2. Alterable States—3/4:** Parliament can reorganise area/boundaries/names by ordinary law; President refers proposal for affected legislature's views, but **consent is not mandatory**. Territorial cession to another country is a distinct issue.
- **3. Single constitutional framework:** States ordinarily have no separate Constitution; erstwhile J&K's separate Constitution is historical, not a current general exception.
- **4. Relative flexibility:** most amendments do not require State ratification; some authorised changes occur outside 368. States cannot introduce a 368 amendment Bill.
- **5. Unequal Rajya Sabha representation:** largely population-linked allocation; States have **1–31 seats**, unlike US Senate's **two per State**. UT representation and nominated members are separate.
- **6. Emergency provisions: 352, 356, 360** strengthen Union powers in different ways; their triggers, consequences and safeguards differ. They do not automatically place every State wholly under Union administration.
- **7. Single citizenship:** Indian citizenship; no separate State citizenship. Residence-based constitutional/statutory exceptions remain possible; all benefits are not necessarily identical across States.
- **8. Integrated judiciary:** common hierarchy applies Union and State law; contrasts with US federal/State court systems. US jurisdiction nevertheless overlaps—“each enforces only its own law” is too absolute.
- **9. All-India Services—312:** IAS, IPS, Indian Forest Service combine Union recruitment/control with State service. Union/State separate services also exist; AIS supports national standards but can raise State-autonomy concerns.
- **10. Integrated audit—148–151:** CAG audits Union and State accounts; constitutional appointment/removal arrangements do not depend on each State's consent. Independence and audit accountability matter; audit does not itself transfer all State financial powers.
- **11. Parliament's State-List access:** 249 and other constitutionally specified routes widen Union competence without necessarily amending the Constitution.
- **12. Governor—155/156:** President appoints; pleasure tenure, with constitutional constraints. Governor has a State constitutional office and specified Union-facing functions, not merely an unrestricted party agent.
- **13. Election machinery—324:** ECI handles parliamentary/State legislative and President/Vice-President elections. **Panchayat/municipal elections use State Election Commissions**, not ECI.
- **14. Reservation of State Bills—200/201:** Governor may reserve; President may assent/withhold. For returned non-Money Bills, reconsideration does **not** create the Article 111 mandatory-assent rule; presidential refusal remains possible.



Centralising mechanisms operate within constitutional conditions.

6. Assent: current judicial clarification

- **Supreme Court Presidential Reference, 20 November 2025:** Governor under 200 has three options—assent, reserve, or **withhold and return with comments**; the last option applies only to non-Money Bills.
- Governor has discretion in this choice; Court rejected general judicially prescribed deadlines and **deemed assent** under 142. Similar rejection of prescribed timelines applies to President under 201.
- **Prolonged, unexplained, indefinite Governor inaction** can attract limited mandamus to exercise a constitutional choice within reasonable time; Court does not substitute its own merits decision.
- Use this later clarification when reading earlier assent rulings or simplified “absolute veto” labels. Reservation/assent power is a constitutional process, not a licence for arbitrary indefinite obstruction.

Supreme Court: Presidential Reference, conclusions 165.1–165.10

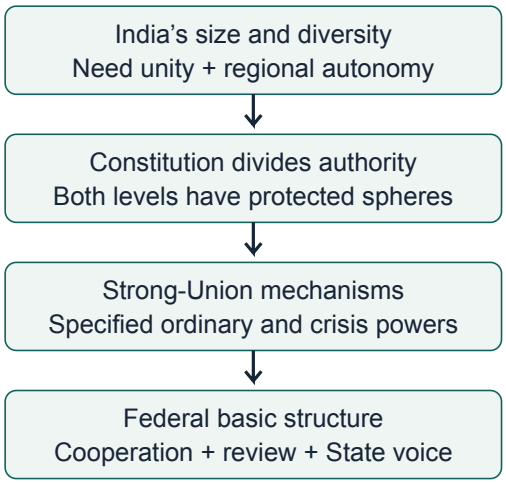
7. How scholars characterise India

- **K.C. Wheare:** quasi-federal; perceived central predominance. **K. Santhanam:** State fiscal dependence/central grants and powerful Planning Commission increased centralisation.
- Santhanam's planning criticism is historical: **NITI Aayog replaced Planning Commission in 2015**; it is a policy/advisory body with a State-participation Governing Council, not the same plan-fund allocation institution.
- **Paul Appleby:** extremely federal. **Morris Jones:** bargaining federalism. **Ivor Jennings:** federation with strong centralising tendency.
- **C.H. Alexandrowicz:** sui generis—distinctive. **Granville Austin:** cooperative federalism; strong Union does not reduce States to mere administrative agencies.
- **Ambedkar:** both governments derive authority directly from Constitution; Union cannot change that partition merely by its own ordinary-law preference. Constitutional exceptions let the system respond to circumstances.

8. Judicial position and federal practice

- **S.R. Bommai (1994): federalism is basic structure.** Greater Union powers do not make States mere satellites; their independent constitutional existence and allotted autonomy remain protected.

- Bommai subjected **356** to judicial review and imposed safeguards; constitutional exceptions cannot be used as the normal rule of government.
- Federal spirit in practice: **Maharashtra–Karnataka/Belagavi boundary dispute; Karnataka–Tamil Nadu/Cauvery sharing; regional parties; Mizoram/Jharkhand/Telangana State formation; demands for fiscal transfers; resistance to interference; limits on President's Rule**.
- Cooperation, bargaining and conflict can coexist. Disputes show multiple legitimate constitutional interests, not necessarily failure of federalism.



Strong Union powers coexist with constitutionally protected federalism.

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9. One-minute recall / Mains framework

- **Federal authority comes from Constitution; administrative decentralisation alone is insufficient.**
- **Seven federal features + fourteen centralising features; federalism remains basic structure.**
- **Union indestructible; States reorganisable; State views required under 3, consent not binding.**
- Mains: unity/diversity rationale → constitutional distribution → centralising safeguards → Bommai/State autonomy → fiscal and institutional cooperation → evaluate actual practice with examples.

Official Constitution: Seventh Schedule and federal provisions

NITI Aayog: formation and Governing Council